

**BEFORE THE
FEDERAL MARITIME COMMISSION**

Docket No.: 20-12

NNABUGWU CHINEDU ANDREW, AVERS LOGISTICS LTD. and CJ DELUZ NIGERIA LTD.,

Complainants,

— vs. —

MARINE TRANSPORT LOGISTICS, INC., ALLA SOLOVYEVA and RAYA BAKHIREV,

Respondents.

JOINT STATUS REPORT

Pursuant to the Presiding Officer's Order on Motions to Compel of May 6, 2021, Complainants and Respondents, by their counsel, as and for their Joint Status Report state as follows:

Complainants' Status Report:

As of the time of this writing, and despite having been ordered to produce the relevant shipping and other documents for the seventeen (17) vehicles at issue in the Complaint, MTL has failed to do so on or before May 25, 2021 as required by Order of May 6, 2021. By way of example, the manifest from Exporting Carrier "Morning Crystal/18MR01" annexed as Appendix "B" to the Complaint herein and Bates Numbered CX003 indicates that respondents loaded the following 3 automobiles by roll-on/roll-off ("RoRo") and shipped them to Nigeria:

1. BOL No.: US001333767; 2006 Lexus GS 300 VIN No.: JTHBH965865006993

Inasmuch as Presiding Officer's Order of May 6, 2021 compelled respondents to produce the relevant shipping and other documents for the seventeen (17) vehicles at issue in the Complaint, Complainants note that respondents have failed to produce the copies of the Dock Receipts, Ocean Liner Bill of Lading, MTL Bill of Lading, MTL Ocean Freight Invoice and AES Direct printout¹ for this vehicle.

¹ As explained to counsel for MTL in the attached email correspondence, even without the Presiding Officer's Order of May 6, 2021, the AES records must be produced upon demand of the shipper pursuant to Section 30.3 of the Foreign Trade Regulations and the Shipping Act of 1984 as amended by the Ocean Shipping Reform Act of 1998.

2. BOL No.: US001333768; 2007 Toyota Avalon VIN No.: 4T1BK36B57U245968

Inasmuch as Presiding Officer's Order of May 6, 2021 compelled respondents to produce the relevant shipping and other documents for the seventeen (17) vehicles at issue in the Complaint, Complainants note that respondents have failed to produce the copies of the Dock Receipt, Ocean Liner Bill of Lading, MTL Bill of Lading, MTL Ocean Freight Invoice and AES Direct printout for this vehicle.

3. BOL No.: US00134773; 2010 Toyota Venza Vin. 4T3BK3BBXAU030283

Inasmuch as Presiding Officer's Order of May 6, 2021 compelled respondents to produce the relevant shipping and other documents for the seventeen (17) vehicles at issue in the Complaint, Complainants note that respondents have failed to produce a full-Size copy of the Dock Receipt for this shipment (Complainants have only a half-page of the Dock Receipt, see, CX0005 attached hereto as Appendix "A"), and that respondent MTL has failed to produce the Ocean Liner Bill of Lading, MTL Bill of Lading, MTL Ocean Freight Invoice and AES Direct printout for this vehicle. In response to complainants' Document Demand Nos.: 5(a) through 5(g), which sought, *inter alia*, a full and complete copy of the dock receipt for this vehicle, together with the Ocean Liner Bill of Lading, MTL Bill of Lading, MTL Ocean Freight Invoice and AES Direct printout, MTL responded by referring complainants to Exhibit "10" to MTL's response to complainants' Document Demands. That exhibit fails to contain a complete copy of MTL Dock Receipt (see, CX0005), nor does it contain: a) MTL's House Bill of Lading for the subject car; b) a copy of the Ocean Liner Bill of Lading; c) the Shipping Instructions for the car; d) the MTL Ocean Freight Invoices for the car; and e) the AES printout. Rather, Exhibit "10" to MTL's response to complainants' Document Demands contains a page called "Cargo Release" for a 2010 Toyota Venza VIN No.: 4T3BK3BBXAU030283, a copy of which is attached hereto as Appendix "B".

With regard to all three of the foregoing cars at issue in the complaint, and in response to complainants' Document Demand No.: 6(d) which sought, copies of all AES declarations, MTL responded by referring complainants to MTL's Answer to Interrogatory #4, which fails to contain copies of any AES Declarations.

With regard to complainants' 2004 Toyota Camry Vin No.: 4T1BA32K34U502288 at issue in the complaint, and in response to complainants' Interrogatory No.: 4, which sought the dates that the automobiles were released and identity of the person(s) and/or entity (or entities) to whom the automobiles were released, together with production of supporting documentation, MTL's response simply identified "Doc Receipt date: May 14, 2018" without providing a full-Size copy of the Dock Receipt for this shipment nor has MTL provided: a) MTL's House Bill of Lading for the subject car; b) a copy of the Ocean Liner Bill of Lading; c) the Shipping Instructions for the car; d) the MTL Ocean Freight Invoices for the car; and e) the AES printout.

With regard to complainants' Document Demand No.: 8(a) which sought with regard to the MSC Bill of Lading in Exhibit "B" to the Complaint (Bates Nos.: CX0009 – CX0010) also identified in paragraph "141" of the Complaint, copies of all Automated Export System ("AES") declarations, proofs of filing, printouts and/or confirmations which relate to the automobiles identified in the above referenced MSC Bill of Lading and which relates to AES ITN: X20180411653898, MTL responded by referring complainants to Exhibit "10" to MTL's response to complainants' Document Demands. That exhibit fails to contain the AES printout. Rather,

Exhibit “10” to MTL’s response to complainants’ Document Demands contains a page called “Cargo Release” for a 2010 Toyota Venza VIN No.: 4T3BK3BBXAU030283 which is not listed on the subject MSC Bill of Lading.

Further, and despite having been ordered by the Presiding Officer to produce copies of storage invoices for the subject cars, respondent’s email to the undersigned counsel of May 19, 2021 fails to contain storage invoices for the subject cars located at MTL’s facility in Houston. Mr. Pogil’s email of May 19, 2021 is attached hereto as Appendix “C”.

Also, the undersigned counsel attempted to confer with counsel for MTL on the issue of MTL’s failure to comply with the Presiding Officer’s directives of May 6, 2021, to no avail. A copy of that correspondence requesting MTL to produce copies of shipping documents for the 17 vehicles at issue in this matter, including MTL Bills of Lading, Ocean Liner Bills of Lading, Dock Receipts, Invoices for Ocean Freight, Storage and other charges, and the AES shipment records is provided herewith as Appendix “D”.

Accordingly, and for the reasons set forth herein, complainants are unable to proceed forward with briefing the Presiding Officer as to the Complainants’ Proposed Findings of Fact and Conclusions of Law without further intervention from the Presiding Officer as to the missing discovery. Despite complainants having made efforts to confer via the attached emails regarding respondents’ failure to comply with the directives of the Presiding Officer, respondents have again delayed and multiplied these proceedings, and stonewalled complainants with regard to discovery which they were already ordered by the Presiding Officer to Produce. Complainants now request that the briefing schedule be revised in order for complainants’ brief to be filed from a date at least thirty-one (31) days after the date that the Presiding Officer issues an Order as to the missing discovery from respondents, whether it be an Order striking respondents’ Answer for failure to comply with the directives of the Presiding Officer, granting attorneys fees or other relief (since the May 6, 2021 Order originally gave complainants from May 25, 2021 when MTL should have produced the missing discovery until June 22, 2021 to file their brief with proposed findings of fact and appendix).

Respondents’ Status Report:

As set forth in the attached email from Mr. Pogil of this date:

Mr. Pogil believes that: “...the Order clearly states at page 6 that only storage invoices are to be produced; it does not mention any AES declarations. I do not believe I have to respond to your new theories of any alleged violations as the pleadings are closed, and the time to amend any pleading has passed, so you may put this response in the status report. It is not proper to raise new theories via a joint status report”. (See, Appendix “D”).

Dated: June 1, 2021

Brooklyn, New York

Respectfully Submitted,

/s Marcus Aurelius Nussbaum

Marcus A. Nussbaum, Esq.

P.O. Box 245599

Brooklyn, NY 11224

Attorney for Complainants

CERTIFICATE OF SERVICE

I hereby certify that I have this day served the **JOINT STATUS REPORT and APPENDIX** upon Respondents' Counsel at the following address:

Garry Pogil, Esq.
112 West 34 Street, 18 Floor
New York, NY 10120

by email to: garry.pogil@gmail.com.

/s/ Marcus Aurelius Nussbaum
Marcus A. Nussbaum, Esq.
P.O. Box 245599
Brooklyn, NY 11224
Tel: 201-956-7071
Fax: 347-572-0439
Attorney for Complainants
marcus.nussbaum@gmail.com

Dated: Brooklyn, New York
June 1, 2021